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By: Seifried

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1 2. "Artificial intelligence" means a machine-based system that
2 can, for a given set of human-defined objectives, make predictions,
3 recommendations, or decisions that influence real or virtual
4 environments;

5 3. "Best interests" means the use, by a covered entity, of
6 personal data or the design of an online service, product, or
7 feature in a way that will not:

8 a. benefit the covered entity to the detriment of the
9 user, or

10 b. result in:

11 (1) reasonably foreseeable and material physical or
12 financial harm,

13 (2) reasonably foreseeable and severe psychological
14 or emotional harm,

15 (3) an offensive intrusion on reasonable privacy
16 expectations, or

17 (4) discrimination based on race, color, religion,
18 sex, national origin, disability, or sexual
19 orientation;

20 4. "De-identified" means data that cannot reasonably be used to
21 infer information about, or otherwise be linked to, an identified or
22 identifiable natural person, or a device linked to such person,
23 provided the covered entity that possesses the data:
24

- a. takes reasonable measures to ensure that the data cannot be associated with a natural person,
- b. publicly commits to not attempt to re-identify the data, and
- c. contractually obligates any recipient of the data to comply with the provisions of this act;

5. "Machine learning" means an application of artificial intelligence that is characterized by providing machine-based systems the ability to automatically learn and improve on the basis of data or experience, without being explicitly programmed;

6. "Minor" means an individual under eighteen (18) years of age;

7. "Minor user" means an individual under eighteen (18) years of age who accesses or uses a social media platform;

8. a. **"Social media platform" means a website or internet medium that:**

- (1) permits a person to become a registered user, establish an account, or create a profile for the purpose of allowing users to create, share, and view user-generated content through such an account or profile,**
- (2) enables one or more users to generate content that can be viewed by other users of the medium, and**

1 (3) primarily serves as a medium for users to
2 interact socially with content generated by other
3 users of the medium, and

4 b. Social media platform does not include:

5 (1) an interactive gaming platform that complies with
6 the requirements of the federal Children's Online
7 Privacy Protection Act, 15 U.S.C., Section 6501,
8 and the regulations, rules, guidance, and
9 exemptions pursuant to such act, or

10 (2) a platform that primarily provides career
11 development opportunities, including professional
12 networking, job skills, learning certifications,
13 and job posting and application services; and

14 9. "User" means a person who accesses or uses a social media
15 platform.

16 SECTION 2. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 201 of Title 75A, unless there
18 is created a duplication in numbering, reads as follows:

19 A. This act shall be known and may be cited as the "Safe
20 Screens for Kids Act".

21 B. 1. A social media platform shall not allow a minor who is a
22 resident of this state to create or maintain an account on such
23 platform without written consent from the parent or legal guardian
24 of the minor. The social media platform shall verify the identity

1 of the person consenting and the relationship of the person
2 consenting to the minor.

3 2. A social media platform shall perform reasonable age
4 verification methods to verify the age of each user.

5 C. 1. A social media platform shall provide a parent or legal
6 guardian with full access to the account of the minor user,
7 including any posts, messages, comments, likes, shares, reactions,
8 and other interactions on the platform.

9 2. A social media platform shall not restrict, limit, or
10 interfere with a parent or legal guardian's ability to monitor,
11 modify, or delete any content or activity on the account of the
12 minor user.

13 D. A social media platform shall not collect data from minor
14 users unless such data is de-identified and shall not use or process
15 the data of a minor user in a manner that is inconsistent with the
16 best interests of the minor user. A social media platform shall not
17 display, send, or target an advertisement to a minor user or use
18 data collected from a minor user for advertising purposes.

19 E. A social media platform shall not use an algorithm,
20 artificial intelligence, machine learning, or other technology to
21 select, recommend, rank, or personalize content for a minor user
22 based on the profile, preferences, behavior, location, or other data
23 of the minor user.

24

1 F. A social media platform shall not employ a feature, design,
2 or mechanism that:

3 1. Encourages or rewards excessive or compulsive use of the
4 platform by a minor user; or

5 2. Exploits the psychological vulnerabilities of a minor user.

6 G. If a social media platform violates any provision of this
7 act, the Attorney General is authorized to bring a civil action to
8 seek injunctive relief or a civil penalty.

9 H. The Attorney General shall promulgate rules to effectuate
10 the provisions of this act. Such rules shall include, but not be
11 limited to:

12 1. Regulations regarding age verification and parental consent;
13 and

14 2. Reasonable exceptions to the provisions of this act;
15 provided, such exceptions shall further the purpose of protecting
16 minors.

17 I. Nothing in this act shall be construed to prevent or
18 preclude a minor from deliberately or independently searching for,
19 or specifically requesting, content or require a social media
20 platform to implement a minimum age requirement to access such
21 platform.

22 SECTION 3. This act shall become effective November 1, 2025.

23 COMMITTEE REPORT BY: COMMITTEE ON TECHNOLOGY AND TELECOMMUNICATIONS
24 February 27, 2025 - DO PASS AS AMENDED